

Amendment No. 2 to HB2359

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 2293*

House Bill No. 2359

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 67-4-1001(7), is amended by deleting the subdivision and substituting instead:

(7) "Consumable material" means a liquid nicotine solution, whether natural or synthetic, or a liquid nicotine analogue intended for use in a vapor product;

SECTION 2. Tennessee Code Annotated, Section 67-4-1001(28), is amended by deleting the subdivision and substituting instead:

(28) "Vapor product":

(A) Means a noncombustible product containing consumable material that employs a mechanical heating element, battery, electronic circuit, or other mechanism, regardless of shape or size, that can be used to produce or emit a visible or non-visible vapor;

(B) Includes an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product, and any vapor cartridge containing consumable material or other container of consumable material that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product; and

(C) Does not include a product regulated under Chapter V of the federal Food, Drug, and Cosmetic Act (21 U.S.C. § 351 et seq.);

SECTION 3. Tennessee Code Annotated, Section 67-4-1035(d), is amended by deleting the language "is subject to a fine" and substituting instead the language "is subject to a fine, issued by the alcoholic beverage commission,".

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.